



CHAPTER 2.

An Act to amend the Supreme Court of Judicature (Consolidation) Act, 1925, by increasing to four the number of puisne judges that may be appointed to be attached to the Probate, Divorce and Admiralty Division of the High Court.

A.D. 1937.

[9th December 1937.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The number of puisne judges that may be appointed to be attached to the Probate, Divorce and Admiralty Division of the High Court shall be increased to four; and accordingly paragraph (iii) of subsection (1) of section four of the Supreme Court of Judicature (Consolidation) Act, 1925 (hereinafter referred to as “the principal Act”) (which determines the constitution of that Division), shall have effect as if for the word “two” there were therein substituted the word “four.”

Amendment
of 15 & 16
Geo. 5. c. 49,
ss. 4 and 11.

(2) After proviso (a) to subsection (1) of section eleven of the principal Act there shall be inserted the following additional proviso :—

“(aa) if after the occurrence at any time of a vacancy among the puisne judges attached to the Probate, Divorce and Admiralty Division, the number of those judges amounts to three,

A.D. 1937.

the vacancy shall not be filled unless and until an address is presented to His Majesty from both Houses of Parliament representing that the state of business in that Division requires that the vacancy should be filled, but where such an address has been presented, it shall be lawful for His Majesty from time to time without any further address to fill any vacancy which may arise among the said judges at any time within a period of one year next after the date of the presentation to His Majesty of that address; and”.

(3) The said proviso (aa) shall not apply to any appointment made by virtue of the provisions of subsection (1) of this section within a period of one year from the passing of this Act, but for the purposes of the application of the said proviso to any such appointment made after the expiration of that period, the appointment shall be deemed to be the filling of a vacancy which has occurred among the puisne judges attached to the Probate, Divorce and Admiralty Division, notwithstanding that the office to which a judge is thereby appointed may not have been vacated by any other judge.

(4) Any amount by which the sums payable under the Supreme Court of Judicature (Consolidation) Act, 1925, out of the Consolidated Fund of the United Kingdom and out of moneys provided by Parliament respectively, are increased by reason of the provisions of this Act shall be defrayed out of the said Fund and out of such moneys as aforesaid.

Short title.

2. This Act may be cited as the Supreme Court of Judicature (Amendment) Act, 1937.

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